

Pradosh Kumar Rout vs Twinkle Biswal Opp. Party on 5 February, 2026

Author: Mruganka Sekhar Sahoo

Bench: Mruganka Sekhar Sahoo

IN THE HIGH COURT OF ORISSA AT CUTTACK

W.P. (C) No.26284 of 2025
Pradosh Kumar Rout Petitioner
Mr. Sayantan Panda, Advocate
-versus-
Twinkle Biswal Opp. Party

CORAM:
JUSTICE MRUGANKA SEKHAR SAHOO
ORDER

05.02.2026 (Hybrid Mode) Order No.

05. 1. The matter is mentioned as it could not reach due to paucity of time.

2. It is submitted by the learned counsel for the petitioner that C.P. No.157 of 2024 filed by the petitioner herein under Sections 11 and 12 read with Section 5 of Hindu Marriage Act, 1955 has been allowed by judgment dated 17.12.2025. Copy of the said judgment is filed along with memo of date. The same is taken on record. Scanned copy be updated.

3. Though the opposite party is not present before this Court but in view of the disposal of the C.P., no order is passed that it would prejudice the opposite party.

4. The writ petition was filed with a prayer to set aside the order dated 21.06.2025 in I.A. No.1 of 2025 arising out of C.P. No.157 of 2024. The I.A. was filed invoking provision of Section 24 of the Hindu Marriage Act seeking maintenance pendente lite @ Rs.5,000/- per month was directed to be paid by the learned Judge, Family Court, Nayagarh by order dated 21.06.2025.

5. The learned counsel for the petitioner refers to paragraph 19 of the judgment which is reproduced herein:

"19. In the instant case, the above parameters fulfilling the mandatory requirement of valid marriage have not been adhered by the parties. In the circumstances, the 'marriage' dated 1.3.2020 between the parties is not a 'Hindu marriage' having regard to the provisions of section 7 of the Act. Moresoever, the Notarized certificate issued

by the Notary vide Ext.A has no legal sanctity and does not fulfil the mandatory requisites of marriage."

6. In view of disposal of the C.P. the order passed under Section 24 of the Hindu Marriage Act merges with the final judgment. The writ petition is disposed of. However, rights of the parties to challenge the judgment dated 17.12.2025 would survive.

(Mruganka Sekhar Sahoo) Judge Jyotsna